Research Methodology

Week 6 Assignment: Questions, Answers and Explanations

Week 6: Intellectual Property

NPTEL course noc26_ge79 (SWAYAM), 10 questions, 1 point each

Correct answers are the NPTEL portal's accepted answers. For every option the table gives a verdict and the reason, and each question ends with a short explanation of the correct answer. This week covers types of intellectual property, patents, trade marks and infringement under Indian law.

Answer key at a glance

Question	Type	Correct option(s)	Your portal score
1	Select all that apply	A, C	0 (wrong answer chosen)
2	Select all that apply	A, B	0.5 (partial: only one of the two correct options chosen)
3	Single answer	A	1 (full marks)
4	Single answer	C	1 (full marks)
5	Single answer	D	1 (full marks)
6	Single answer	D	1 (full marks)
7	Single answer	B	1 (full marks)
8	Single answer	D	1 (full marks)
9	Single answer	A	1 (full marks)
10	Single answer	D	1 (full marks)

Questions with explanations

Question 1 of 10

Which of the following falls in the category of intellectual property?

Select all that apply. *Your portal score: 0 (wrong answer chosen).*

Option	Statement	Verdict	Reason
A	**An original set of ideas or research results**	**Correct**	Original ideas and results are products of the mind, which is what IP protects.
B	Ideas originating from real property	**Wrong**	Real property means land and buildings, a different kind of property.
C	**Properties emanating from human creative labor**	**Correct**	Creations of human creative effort (works, designs, inventions) are IP.
D	All of the above	**Wrong**	Option B is wrong, so "all of the above" cannot be right.

Correct answer: A and C.

Explanation: Intellectual property is the product of the human mind: original ideas, research results and creative works. Land and buildings (real property) are a different category, so "all of the above" fails.

Question 2 of 10

Violations of Intellectual Property Rights leads to

Select all that apply. *Your portal score: 0.5 (partial: only one of the two correct options chosen).*

Option	Statement	Verdict	Reason
A	**Infringement**	**Correct**	Using someone's IP without permission is infringement.
B	**Casual penalties**	**Correct**	Infringement exposes the violator to legal penalties (the intended meaning of this option).
C	No big deal as we have license of fundamental rights to do whatever we want	**Wrong**	Fundamental rights do not allow using others' IP.
D	None of the above	**Wrong**	Options A and B hold.

Correct answer: A and B.

Explanation: Violating an IP right is called infringement, and it leads to legal penalties for the violator.

Note: *The portal's wording "Casual penalties" looks like a typo for civil or criminal penalties. The intended idea is that a violation has legal consequences.*

Question 3 of 10

In order to obtain legal protection, you don't have to register which of the following types of intellectual property rights?

Single answer.

Option	Statement	Verdict	Reason
A	**Copyrights**	**Correct**	Copyright arises automatically when an original work is created; registration is optional.
B	Patents	**Wrong**	A patent is granted only after you file and it is examined.
C	Designs	**Wrong**	Design protection requires registration.
D	Geographical Indications	**Wrong**	A geographical indication needs registration.

Correct answer: A.

Explanation: In India, copyright protection exists from the moment of creation, and registration is only useful as evidence. Patents, designs and geographical indications are granted only after registration.

Question 4 of 10

A person invents a new process to capture musical performance on tape, he/she will most likely apply for—

Single answer.

Option	Statement	Verdict	Reason
A	Copyrights	**Wrong**	Copyright would protect the music itself, not a technical process.
B	Trade Marks	**Wrong**	A trade mark protects a brand name or logo.
C	**Patents**	**Correct**	A new technical process is an invention, and inventions are protected by patents.
D	Trade Secret	**Wrong**	A trade secret is kept hidden and not registered; the question says the person applies for protection.

Correct answer: C.

Explanation: A new process is an invention, and the right that protects inventions is the patent.

Question 5 of 10

Use of an unregistered trade mark of a competitor shall amount to a tort of—

Single answer.

Option	Statement	Verdict	Reason
A	Deceit	**Wrong**	Deceit needs a false statement made to cheat a particular person.
B	Fraud	**Wrong**	Fraud also needs intentional deception for gain.
C	Negligence	**Wrong**	Negligence is failure to take reasonable care.
D	**Passing off**	**Correct**	Passing off is presenting your goods as someone else's by using their mark, and it protects even unregistered marks.

Correct answer: D.

Explanation: Even an unregistered mark has goodwill. Using a competitor's mark so that customers believe your goods are theirs is the tort of passing off.

Question 6 of 10

What does an IP right entitle a person?

Single answer.

Option	Statement	Verdict	Reason
A	Right to file a suit in case of an infringement	**Wrong**	True, but only one of the entitlements.
B	Right of excludability	**Wrong**	True, but only one of the entitlements.
C	Right of commercial exploitation	**Wrong**	True, but only one of the entitlements.
D	**All of the above**	**Correct**	An IP right gives all three entitlements.

Correct answer: D.

Explanation: The owner can exclude others from using the IP, can earn from it commercially and can sue for infringement. So all of the above is correct.

Question 7 of 10

The Reebok Delta symbol and Hyundai Logo are protected by—

Single answer.

Option	Statement	Verdict	Reason
A	Patents	**Wrong**	Patents protect inventions, not logos.
B	**Trade Marks**	**Correct**	A trade mark is a sign, symbol or logo that identifies the maker of goods.
C	Trade dress	**Wrong**	Trade dress covers the overall look of a product or its packaging.
D	Geographical Indications	**Wrong**	These mark goods that come from a particular region.

Correct answer: B.

Explanation: Brand symbols and logos such as the Reebok Delta and the Hyundai logo are protected as trade marks.

Question 8 of 10

Under the Patents Act, 1970, the person entitled to receive a patent on a new invention is—

Single answer.

Option	Statement	Verdict	Reason
A	The one who invented the invention first	**Wrong**	India follows first-to-file, not first-to-invent.
B	The one who commercialise the invention first	**Wrong**	Commercial use first does not give the right to the patent.
C	The one who thought of the invention first	**Wrong**	Thinking of it first gives no legal right.
D	**The one who filed a patent application first**	**Correct**	The right goes to the first applicant who files.

Correct answer: D.

Explanation: Indian patent law is first-to-file. That is why an inventor should file the application before disclosing or selling the invention.

Question 9 of 10

What is the term of a Patent in India?

Single answer.

Option	Statement	Verdict	Reason
A	**20 years**	**Correct**	A patent in India lasts 20 years from the date of filing.
B	25 years	**Wrong**	Not the term set by law.
C	10 years	**Wrong**	Not the term set by law.
D	15 years	**Wrong**	Not the term set by law.

Correct answer: A.

Explanation: The term of a patent in India is 20 years, counted from the filing date. This matches the minimum term set by the TRIPS agreement.

Question 10 of 10

What is the full form of TRIPS?

Single answer.

Option	Statement	Verdict	Reason
A	Tariff Related Aspects of Intellectual Properties	**Wrong**	TRIPS is about trade, not tariffs.
B	Trade Related Aspects of Intellectual Property Science	**Wrong**	The last word is "Rights", not "Science".
C	The Registration of Intellectual Property	**Wrong**	This is not what the acronym stands for.
D	**Trade Related Aspects of Intellectual Property Rights**	**Correct**	This is the correct full form.

Correct answer: D.

Explanation: TRIPS is the World Trade Organization agreement on Trade-Related Aspects of Intellectual Property Rights. It sets minimum standards of IP protection for member countries.